

		should have known of the dangerous condition of the unprotected skylights on the roof. Thus, because there are therefore triable issues of fact as to whether the <i>Privette</i> Doctrine shields Defendant from liability, there are more general triable issues of fact as to whether Defendant, as the landowner, is responsible for the negligence of its subcontractor, West Coast in failing to mitigate the hazards of the unprotected skylights. (See <i>Srithong v. Total Investment Co.</i> (1994) 23 Cal.App.4th 721, 725 (“[t]he duty which a possessor of land owes to others to put and maintain it in reasonably safe condition is nondelegable. If an independent contractor, no matter how carefully selected, is employed to perform it, the possessor is answerable for harm caused by the negligent failure of his contractor to put or maintain the buildings and structures in reasonably safe condition).) As a result, the MSJ is denied. Plaintiff shall give notice.
6.	2023-1333479 Arevalo v. Nissan	Defendant Nissan North America, Inc.’s motion for relief from waiver of objections to requests for production, set one (“RFPs”), and requests for admission, set one, served by plaintiffs Neftali Arevalo and Maria Yamileth Bonilla is granted. Plaintiffs’ motions to compel responses by Defendant to RFPs is therefore moot. The court may relieve a party from a waiver of objections to interrogatories if two conditions are satisfied: (1) the party has subsequently served a response that is in substantial compliance; and (2) the party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. §§ 2030.290(a) (interrogatories); 2031.300(a) (inspection demand); 2033.280(a) (requests for admission)). With respect to the first condition, Defendant has now served code compliant responses. [Do Decl. (ROA #107), Ex. C; Do Reply Decl. (ROA #222), Ex. A.] “[A]ny form of response [] is permissible,” including an answer or objection. Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:1035. That is, “there must be a full and fair response to each interrogatory; so that all questions are answered other than those to which

		the belated objections relate.” <i>Id.</i> (discussing CCP §2031.300(a), which is to same effect as CCP §2030.290(a)). With respect to the second, Defendant’s counsel points to several failures of communication resulting in her being unaware. According to her declaration, Defendant’s counsel was originally unaware of the discovery because it was served on Defendant’s agent for service of process rather than counsel. Nor did Plaintiffs’ counsel alert Defendant’s counsel that there was outstanding discovery that she had not responded to. Further, counsel did not realize she had failed to respond when served with the motions to compel because they were mistakenly logged as motions to compel <i>further</i> responses. [Do Decl. (ROA #103), ¶¶ 2-3.] “Accordingly, I was not aware that Nissan’s discovery responses were overdue.” [<i>Id.</i>, ¶ 3.] Under the circumstances, the court finds counsel’s neglect to be excusable. <i>See City of Fresno v. Superior Court</i> (1988) 205 Cal.App.3d 1459, 1467 (applying CCP 473 standard under predecessor to CCP §2031.300(a), which is to same effect as CCP §2030.290(a)). Accordingly, Defendant’s motion for relief from waiver is granted.
7.	2023-1332366 Adorn Premiums v. J Style Premiums	Demurrer to First Amended Complaint Defendant Freeway Industrial Park’s demurrer to the second and fifth causes of action of Plaintiffs Adorn Premiums, LLC and Joshua Ivy’s First Amended Complaint is VACATED. It appears that Plaintiffs attempted to file a First Amended Complaint (“FAC”) on September 30, 2024. (ROA 67.) The attempt was rejected, however, with the Clerk commenting that leave of court was needed to file an amended complaint. (<i>Id.</i>) The instant demurrer is premature. No FAC has yet been filed and one cannot be filed without leave of court. Defendant Freeway Industrial Park to give notice. Motion to Be Relieved as Counsel of Record Attorney Brian Davis and Forward Counsel LLP move to be relieved as counsel for Plaintiff Adorn Premiums LLC. The motion is DENIED without prejudice.